Data Protection Policy (GDPR)

Document Title: IBK Group Data Protection Policy
Policy Reference: POL-COMP-GDPR-2024-001
Regulatory Framework: GDPR (Regulation (EU) 2016/679); applicable national implementations
Version: 3.2
Effective Date: 1 January 2024
Review Date: 31 December 2024
Owner: IBK Group Data Protection Officer
Approved By: IBK Group Board of Directors
Confidentiality: Internal

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1. PURPOSE & SCOPE

This Policy establishes IBK Group's approach to the protection of personal data in compliance with Regulation (EU) 2016/679 (GDPR) and applicable national data protection legislation across all jurisdictions in which IBK Group operates (Germany, Spain, France, the United Kingdom, Switzerland, Luxembourg).

This Policy applies to: - All IBK Group entities (legal entities within the IBK banking and insurance group). - All employees, contractors, temporary staff, and third parties acting on behalf of IBK Group. - All personal data processed by or on behalf of IBK Group in any medium (electronic, paper, verbal).

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2. DEFINITIONS

Term	Definition
Personal Data	Any information relating to an identified or identifiable natural person.
Data Subject	The natural person to whom personal data relates.

Data Controller	IBK Group entity that determines the purposes and means of processing personal data.
Data Processor	Entity that processes personal data on behalf of a Data Controller.
Processing	Any operation performed on personal data (collection, storage, use, disclosure, deletion).
DPO	Data Protection Officer — IBK Group's designated data protection authority contact.
DPIA	Data Protection Impact Assessment.

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3. DATA PROTECTION PRINCIPLES

IBK Group processes personal data in accordance with the following principles (GDPR Art. 5):

Principle	IBK Group Commitment
Lawfulness, Fairness, Transparency	All processing must have a documented legal basis (Art. 6/9). Customers and employees receive clear privacy notices.
Purpose Limitation	Data collected for a specific purpose may not be used for incompatible purposes without a new legal basis.
Data Minimisation	Only personal data that is necessary for the stated purpose shall be collected and retained.
Accuracy	Personal data shall be kept accurate and up to date. Customers may request correction at any time.
Storage Limitation	Personal data shall not be retained longer than necessary — see IBK Data Retention Schedule (POL-RET-2024-001).

Integrity & Confidentiality	Appropriate technical and organisational measures shall be implemented to protect against unauthorised access, loss, or destruction.
Accountability	IBK Group shall demonstrate compliance through records, DPIAs, training, and audit.

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4. LEGAL BASES FOR PROCESSING

IBK Group relies on the following legal bases for its main processing activities:

Processing Activity	Legal Basis (GDPR Art. 6)
Customer onboarding & KYC	Art. 6(1)(b) — Contract; Art. 6(1)(c) — Legal obligation (AML, MiFID, CRR)
Credit assessment	Art. 6(1)(b) — Contract
Marketing to existing customers	Art. 6(1)(f) — Legitimate interests
Employee HR records	Art. 6(1)(b) — Contract; Art. 6(1)(c) — Legal obligation
Fraud prevention	Art. 6(1)(f) — Legitimate interests
Regulatory reporting	Art. 6(1)(c) — Legal obligation
Automated profiling / credit scoring	Art. 6(1)(b) + Art. 22 safeguards

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5. SPECIAL CATEGORIES OF DATA (GDPR Art. 9)

IBK Group processes special categories of personal data only where: - Explicit consent has been obtained from the data subject; or - Processing is necessary for employment, social security, or social protection law purposes; or - Processing is necessary for archiving, research, or statistical purposes in the public interest.

IBK Group's primary exposure is health data (insurance underwriting for life and health products) processed under Art. 9(2)(a) (explicit consent) and Art. 9(2)(b) (employment/social protection).

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6. DATA SUBJECT RIGHTS

Right	IBK Group Commitment
Right of Access (Art. 15)	Respond within 30 days; no charge for first request.
Right to Rectification (Art. 16)	Correct inaccurate data without undue delay.
Right to Erasure (Art. 17)	Erase where no overriding legal obligation to retain exists.
Right to Restriction (Art. 18)	Restrict processing during disputes.
Right to Data Portability (Art. 20)	Provide data in machine-readable format for automated processing.
Right to Object (Art. 21)	Honour objections to direct marketing; assess legitimate interests objections.
Rights relating to automated decisions (Art. 22)	Provide human review of automated credit decisions.

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7. DATA BREACH MANAGEMENT

IBK Group shall manage data breaches in accordance with the IBK Data Breach Response Procedure (PROC-COMP-BREACH-001):

1. Detection & Assessment: Immediate escalation to the Information Security team and DPO.
2. Containment: Steps to stop ongoing breach within 1 hour of detection.
3. Authority Notification: Report to competent supervisory authority within 72 hours where breach is likely to result in risk to individuals (GDPR Art. 33).
4. Data Subject Notification: Notify affected individuals without undue delay where breach is likely to result in high risk (GDPR Art. 34).

5. Documentation: All breaches (whether notifiable or not) to be documented in the IBK Breach Register.

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8. INTERNATIONAL TRANSFERS

Transfers of personal data outside the EEA shall only occur where: - An adequacy decision exists for the destination country (GDPR Art. 45); or - Standard Contractual Clauses (SCC) (EC Decision 2021/914) are in place; or - Binding Corporate Rules (BCR) are approved by the lead supervisory authority.

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9. POLICY GOVERNANCE

Role	Responsibility
IBK Group DPO	Policy owner; supervisory authority liaison; DPIA oversight
Business Line CCOs	Ensure business-line compliance with this policy
IT / Information Security	Technical and organisational measures implementation
HR	Employee training and awareness
Legal	Legal basis assessments; DPA drafting
Internal Audit	Annual policy compliance audit

APPROVAL

Role	Name	Date
Group DPO	Dr Julia Hartmann	15 December 2023

Group CCO	Hélène Renaud	18 December 2023
Board Approval	IBK Group Board	20 December 2023

> ☐☐ SPECIMEN DOCUMENT — FOR DEMONSTRATION PURPOSES ONLY

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